EXHIBIT 1

UNITED STATES DISTRICT COURT
MIDDLE DISTRICT OF FLORIDA
TAMPA DIVISION

AMERICAN INTEGRITY INSURANCE COMPANY OF FLORIDA,

Plaintiff,

v. **Case No.: 8:24-cv-00783-KKM-AEP**

JOHN DOE, owner/user of the email address fraud@americanintegrityfraud.com,

Defendant.
_____/

DECLARATION IN SUPPORT OF PLAINTIFF AMERICAN INTEGRITY INSURANCE COMPANY OF FLORIDA'S
MOTION FOR PRELIMINARY INJUNCTION

I, Michael Sperounes, pursuant to 28 U.S.C. § 1746, hereby declare as follows:

1. My name is Michael Sperounes. I am over the age of eighteen (18) and am competent to testify in this matter. This Declaration is submitted in support of the Motion for Preliminary Injunction filed in this action by Plaintiff American Integrity Insurance Company of Florida ("***Plaintiff***").

2. I am Senior Vice President of Litigation of Plaintiff.

3. Plaintiff was established in 2006 and is the fifth largest Florida-domiciled residential property insurer, with in excess of 300,000 customers and represented by more than 1,000 independent agents.

4. Plaintiff is a Tampa-based company that offers sound and comprehensive property insurance solutions, including traditional home insurance and coverage for vacant homes, condominiums, manufactured homes, rental and seasonal homes, umbrella insurance, golf carts, X-Wind policies, cyber coverage, and watercraft.

5. Plaintiff also offers extra protection, including flood insurance as well as identify theft and equipment breakdown coverage to help address a broad range of needs facing homeowners today.

6. Plaintiff does business under several trademarks, including AMERICAN INTEGRITY INSURANCE GROUP and INTEGRITY MORE THAN A PROMISE, as well as the following stylized/design marks:

AMERICAN INTEGRITY INSURANCE GROUP

INTEGRITY MORE THAN A PROMISE

(collectively, the "***Marks***").

7. The Marks have been registered with the United States Patent and Trademark Office under Registration Nos. 5,264,810, 5,245,920, 5,245,919, 5,264,811, and 5,245,921.

8. These registrations are valid and subsisting, have not been cancelled, revoked or abandeoned and have become incontestable as provided in 15 U.S.C. § 1065.

9. Plaintiff owns valuable rights and goodwill in its Marks. It has spent a great deal of time and money since 2006 building and promoting its business using the Marks resulting in substantial goodwill and consumer recognition.

10. As a result of Plaintiff's sales and advertising of its products under the Marks, the widespread sale of such products under the mark, and the quality of the products sold under the mark, such products have come to be, and now are, well and favorably known to the trade and public under the Marks.

11. Plaintiff has over $509,623,548 in gross written premium sales annually of products under the Marks.

12. The Marks are a means by which such products are identified as originating with Plaintiff and valuable goodwill in the business as represented by the Marks has been generated.

13. In March of 2024, Plaintiff became aware of the emails as laid out in the Motion having been received by a number of employees and independent agents of Plaintiff from the email address fraud@americanintegrityfraud.com.

14. The source of the emails is not identified in them, and they all originate from the email address fraud@americanintegrityfraud.com.

15. Plaintiff is not the owner of the domain <americanintegrityfraud.com> and neither it nor any person or entity sponsored or approved by, or affiliated with, Plaintiff uses the email address fraud@americanintegrityfraud.com.

16. The insurance products and services advertised through these emails are not provided by Plaintiff or any person or entity sponsored or approved by, or affiliated with, Plaintiff.

17. Plaintiff has not licensed or otherwise permitted or approved of the owner and/or user of the email address fraud@americanintegrityfraud.com to use Plaintiff's federally-registered Marks.

18. Plaintiff has not yet been able to determine the actual source of the emails at issue as referenced in the Motion.

19. As laid out in the Motion, these emails contain a number of false statements regarding Plaintiff and its business.

20. These emails are of great concern to Plaintiff and are injuring Plaintiff and its business by damaging its reputation as a reputable insurance company and tarnishing Plaintiff's brand.

21. Plaintiff also sends out marketing and advertising emails to customers and potential customers.

22. This Declaration was executed in the United States.

FURTHER DECLARANT SAYETH NAUGHT.

I declare under the penalty of perjury that the foregoing is true and correct.

Executed on the 1st day of April 2024.

Michael Sperounes